

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
DELICIA ANDERSON,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. KATHERINE CAPOTE,
OFFICERS JOHN AND JAMES DOE, names presently
unknowable by Plaintiff and meant to designate
additional offending officers, and LOSSENY CISSE,

The basis of venue is:
CPLR 504 (3)

Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
July 17, 2019



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

To: CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

P.O. Katherine Capote, Shield 15559 of the 46th Precinct
2120 Ryer Avenue, Bronx NY 10457

Losseny Cisse, 900 Ogden Avenue, #3H, Bronx NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DELICIA ANDERSON,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. KATHERINE CAPOTE, and
OFFICERS JOHN AND JAMES DOE, names presently
unknowable by Plaintiff and meant to designate additional
offending officers, and LOSSENY CISSE,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF DELICIA ANDERSON

1. At the time of the commencement of this action, plaintiff DELICIA ANDERSON
was a resident of the County of Bronx, City and State of New York.
2. At the time of the commencement of this action, defendant LOSSENY CISSE was
a resident of the County of Bronx, City and State of New York.
3. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

4. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.
5. That the CITY OF NEW YORK maintains a Police Department.
6. That on and about July 21, 2018 P.O. KATHERINE CAPOTE was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
7. That on and about July 21, 2018 at approximately 10:20 P.M., P.O. KATHERINE CAPOTE was working and acting within the scope of her employment as a Police Officer, and under the color of law.
8. That on and about July 21, 2018 OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable to Plaintiff but necessarily known to Defendants by virtue of their involvement with the subject incident, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
9. That on and about July 21, 2018 at approximately 10:20 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
10. That on or about July 21, 2018 at approximately 10:20 P.M., at or near the front of 2120 Ryer Avenue, Bronx, New York, the plaintiff DELICIA ANDERSON was

improperly assaulted, battered, detained, questioned, searched, arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to detain, question, search, arrest or confine DELICIA ANDERSON.

11. That immediately prior to being assaulted, battered and placed under arrest, Plaintiff DELICIA ANDERSON was told to leave the area in front of 2120 Ryer Avenue, Bronx, New York by OFFICER JOHN DOE, a supervisor of P.O. KATHERINE CAPOTE, however, Plaintiff DELICIA ANDERSON insisted on obtaining the name of said OFFICER JOHN DOE for the purposes of lodging a complaint for that Officer's failure to take her complaint against Defendant LOSSENY CISSE.

12. That, in retaliation for said conduct, said OFFICER JOHN DOE did instruct P.O. KATHERINE CAPOTE to arrest Plaintiff DELICIA ANDERSON.

13. That at the above time and place P.O. KATHERINE CAPOTE was provided information that P.O. KATHERINE CAPOTE knew was false [that Plaintiff DELICIA ANDERSON had engaged in conduct that was illegal] and P.O. KATHERINE CAPOTE falsely asserted that Plaintiff DELICIA ANDERSON had nevertheless committed a crime.

14. That P.O. KATHERINE CAPOTE knew or should have known, as any reasonable officer would, that the conduct that was described as attributable to Plaintiff DELICIA ANDERSON which constituted the basis of her arrest, was false, and was, in fact,, asserted in retaliation for Plaintiff DELICIA ANDERSON's lawful actions or statements.

15. That the defendants, their agents, servants and/or employees questioned and detained the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

16. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

17. That the defendants, their agents, servants and/or employees arrested the Plaintiff without any basis in law or fact, by making false accusations against her, when they knew, or in the exercise of reasonable care, should have known they were false.

18. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff and took her property without any basis in law or fact, and Plaintiff being aware of her unlawful confinement, was thereby caused freight, shock, emotional distress and physical consequences.

19. That during said unlawful arrest, Plaintiff was subject to unwanted touching, was battered and assaulted by the arresting officer(s).
20. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, without any probable cause or reasonable basis to do so, for nefarious, unlawful reasons, including in retaliation for lawful behaviors, to satisfy arrest quotas, advance employment opportunities, and subjugate and oppress that community without regard to whether the individuals were themselves engaging in any unlawful actions, and without probable or reasonable cause.
21. Thereafter officers of Bronx Police Precincts routinely engage in the use of practices such as illegal, unlawful questioning, detentions and arrests in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority and repeatedly providing false information and testimony, and without reprimand to the offending officers.
22. Said policy, practice and procedure of having arrest quotas, euphemistically known as productivity goals, which result in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the

evidence presented by several witnesses that officers were expected to make certain arrest goals.

23. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority populations without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas lead to a practice and procedure of, for instance, arresting persons for conduct that is not criminal.

24. Additionally, Officer Craig Matthews presented evidence in federal court that he was subject to retaliation for reporting said quota system at the 40th Precinct in 2009 and Officers Pedro Serrano and Adrain Schoolcraft presented evidence in recorded form of the use of arrest quotas by the New York City Police Department.

25. Further, said wrongful arrests are a direct result of the institutionalized practice, policy and procedure of promoting arrest quotas, also euphemistically known as productivity goals and for the employment advancement.

26. Moreover, the New York City Bar published an exhaustive study which demonstrated the unconstitutional policy instituted by the the Defendants, which

continued unabated despite protestations of the amelioration of said policy, which is found at <https://www2.nycbar.org/pdf/report/uploads/20072495-StopFriskReport.pdf> . Said policy resulted in Court Stipulated Supervision which has not been successful and resulted in an evasion of documentation and generation of reports created by offending officers, thereby surreptitiously continuing the unlawful policy.

27. Additionally on October 1, 2015 the New York City Department of Investigation Office of the Inspector General for the NYPD issued a report, which is incorporated herein and can be found at http://www.nyc.gov/html/oignypd/assets/downloads/pdf/oig_nypd_use_of_force_report_-_oct_1_2015.pdf . That report determined that the New York City Police Department routinely fails to discipline officers who have engaged in misconduct, and fails to adequately track instances of abuse of power, and fails to properly train officers, and despite those findings, and perfunctory attempts at remediation, the practice continues unabated, and was evidenced by the The Report of the Independent Panel on the Disciplinary System of the New York City Police Department, found at <https://www.independentpanelreportnypd.net> and incorporated herein.

28. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

29. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the Plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

30. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

31. That as a result of the foregoing, the Plaintiff DELICIA ANDERSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF DELICIA ANDERSON

32. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 31 as though more fully set forth herein.

33. That on October 11, 2018, Plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented upon the defendant CITY OF NEW YORK, by presenting a copy thereof, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

34. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

35. That on December 11, 2018 the plaintiff appeared at, and give testimony at a General Municipal Law §50h hearing, demanded and conducted by the CITY OF NEW YORK.

36. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

37. That on or about July 21, 2018 at approximately 10:20 P.M., at or near the front of 2120 Ryer Avenue, Bronx, New York, the Plaintiff DELICIA ANDERSON was improperly stopped, assaulted, detained, battered, questioned, searched, arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to stop, question, search, detain, arrest or confine DELICIA ANDERSON.

38. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff of Due Process under Law.

39. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

40. That the defendants, their agents, servants and/or employees arrested the Plaintiff without any basis in law or fact, by making false accusations against her, when they knew, or in the exercise of reasonable care, should have known they were false.

41. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff and took her property without any basis in law or fact, and Plaintiff being aware of her unlawful confinement, thereby was caused freight, shock, distress and physical consequences.

42. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

43. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

44. That as a result of the foregoing, the Plaintiff DELICIA ANDERSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF DELICIA ANDERSON

45. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 44 as though more fully set forth herein.

46. That at the above mentioned time and place the plaintiff DELICIA ANDERSON was improperly battered and assaulted without privilege, proper authority or justification, having no reason in law or in fact to batter and assault plaintiff DELICIA ANDERSON.

47. That the defendants P.O. KATHERINE CAPOTE and/or OFFICER[S] JOHN AND JAMES DOE, did, during an arrest of plaintiff, utilize unjustified, unnecessary excessive force.

48. That the defendants, their agents, servants and/or employees unlawful battery and assault upon Plaintiff thereby caused fright, shock, emotional distress and physical consequences.

49. As a result of the aforesaid assault, plaintiff DELICIA ANDERSON received injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations and was otherwise damaged and injured.

50. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff DELICIA ANDERSON of Due Process under Law.

51. That the acts of the Defendants, CITY OF NEW YORK, its agents, servants and / or employees, NEW YORK CITY POLICE DEPARTMENT, P.O. KATHERINE CAPOTE and OFFICER[S] JOHN AND/OR JAMES DOE were acts of discrimination, were racist, and improper, and that the defendants' actions amounted to assault and

battery upon Plaintiff and the defendants were otherwise careless, reckless and negligent including those Officers who failed to intervene to prevent the occurrence

52. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

53. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

54. That as a result of the foregoing, the Plaintiff DELICIA ANDERSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF DELICIA ANDERSON

55. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 54 as though more fully set forth herein.

56. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

57. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper investigation of the arrest of individuals.

58. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff DELICIA ANDERSON was denied her freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the Plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

59. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF
OF THE PLAINTIFF DELICIA ANDERSON

60. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 59 as though more fully set forth herein.
61. That on July 21, 2018 Plaintiff DELICIA ANDERSON did lawfully hire defendant LOSSENY CISSE, as a driver, to travel to a destination by hired vehicle.
62. That defendant LOSSENY CISSE declared to Plaintiff DELICIA ANDERSON that the fare for said travel would be \$12, however upon reaching the destination, did insist on a \$15 fare.
63. That Plaintiff DELICIA ANDERSON, after paying the fare of \$12, instructed her friend, who was also in the vehicle, to exit the vehicle in order to obtain the additional \$3 that defendant LOSSENY CISSE was insisting on.
64. That upon the exit of the vehicle by the friend of Plaintiff DELICIA ANDERSON, defendant LOSSENY CISSE did purposely and wrongly confine Plaintiff DELICIA ANDERSON by refusing to allow her to exit the vehicle and in fact did place the vehicle in motion thereby preventing her from exiting the vehicle.
65. That Plaintiff DELICIA ANDERSON was aware of her confinement.
66. That defendant LOSSENY CISSE did, at that time and place, insist on Plaintiff DELICIA ANDERSON, do an indecent act in exchange for the excessive fare.

67. That Plaintiff DELICIA ANDERSON insisted on defendant LOSSENY CISSE travel to the 46th Police Precinct at 2120 Ryer Avenue, Bronx, NY, which defendant LOSSENY CISSE only did after Plaintiff DELICIA ANDERSON placed calls to 911.
68. That following his arrival at 2120 Ryer Avenue, Bronx, NY, defendant LOSSENY CISSE was paid and did accept the additional \$3 fare.
69. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.
70. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.
71. That as a result of the foregoing, the Plaintiff DELICIA ANDERSON was damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First, Second, Third, Fourth and Fifth Causes of Action, inclusive of punitive damages, and attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
July 17, 2019


By: JONATHAN L. GLEIT, ESQ.

Attorney for Plaintiff
DELICIA ANDERSON

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Katherine Capote, Shield 15559 of the 46th Precinct
2120 Ryer Avenue, Bronx NY 10457

Losseny Cisse, 900 Ogden Avenue, #3H, Bronx NY 10452

ATTORNEY'S VERIFICATION

Jonathan L. Gleit, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am the attorney of record for Plaintiff,

DELICIA ANDERSON

I have read the annexed

COMPLAINT

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by myself and not Plaintiff is that Plaintiff is not presently in the county wherein the attorney for the plaintiff created this document.

DATED: Bronx, N.Y.

July 17, 2019



JONATHAN L. GLEIT, ESQ.